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WARRANTY CONDITIONS - EFB PLUS FLEXIBLE SPILL CONTAINMENT BERMS

§ 1 Subject of Warranty

Exflo Sp. z o.o. grants a warranty to the Buyer of the **EFB flexible containment berm**, which is designed to secure against uncontrolled spills of substances—classified as environmentally hazardous—from containers, machines, vehicles, or tanks onto the ground.

§ 2 Scope of Warranty

1. The Product Warranty covers all product defects resulting from hidden material defects and manufacturing defects consisting of improper execution of the product, including in particular the seams of the flexible fabric.
2. The **warranty for the tightness of the flexible fabric** covers all defects of the fabric resulting from **hidden material defects** consisting of improper manufacturing of the fabric.

§ 3 Warranty Period

1. The Product Warranty covers a period of **7 years** from the date on the sales document, unless a document (sales document, offer, or other) issued by Exflo Sp. z o.o. indicates a different period and restrictions, which the Buyer agrees to by accepting the terms of the offer.
2. The Warranty Period takes into account the product's **chemical resistance table**, which indicates the degree of resistance of the berm's container during continuous contact with the specified substance for **24 months**. Substances should not be allowed to have contact with the container for longer than specified by Exflo Sp. z o.o.
3. The product does not require **warranty inspections**.

§ 4 Expiration of Warranty

Rights Resulting from the Warranty Expire in the Event That:

1. The Buyer has not made full payment for the product on time, in accordance with the arrangements contained in the agreement or on the invoice issued by Exflo Sp. z o.o.
2. The Product (containment berm) has been subjected to **modifications or repairs** performed by individuals not authorized by Exflo Sp. z o.o.
3. The specified warranty period has expired, counting from the product's **date of acceptance/receipt**.

§ 5 Warranty Exclusions

The Warranty does not cover:

1. **Imperfections in appearance**, such as color intensity or changes accompanying material joining, that do not affect the berm's **technical parameters** or its ability to be used for its intended purpose.
2. Damages caused by assembly or disassembly of the product that is inconsistent with the instructions.
3. **Damages caused by using the product inconsistently with the operating instructions**, particularly: damage to the berm during vehicle entry/exit/sudden maneuvers, overfilling the berm, or contact of the flexible material of the berm's container with a liquid inconsistent with the chemical resistance table found in the Product Data Sheet..
4. All mechanical damages, including in particular:
   damages arising during assembly, disassembly, transport, relocation, loading, unloading, including damages resulting from the frequent repetition of these activities, as well as mechanical damages resulting from gross negligence, acts of vandalism, destructive human or animal action, the effect of thermal agents, landslides, and other natural disasters.
5. Damages caused by the use of chemical agents other than those permitted.
6. Damages caused by utilizing the product in a manner inconsistent with its intended purpose.
7. Reduction of the flexible fabric's resistance and other parameters due to normal wear and tear of the material.

§ 6 Scope of Warranty Repair

In the event of a defect or lack of recognized product properties occurring within **24 months from the date of acceptance/receipt**, provided the product is used in accordance with its intended purpose, Exflo Sp. z o.o. undertakes to eliminate the defect or replace the defective element within **21 days** of notification. The repair of the existing defect **does not extend the Warranty Period**.